



सत्यमेव जयते

केन्द्रीय सतर्कता आयोग
CENTRAL VIGILANCE COMMISSION



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सं./No.....021/VGL/032.....

दिनांक / Dated.....05.09.2022.....

Circular No. 19/09/22

Subject: Revised Guidelines on Intensive Examination of Public Procurement Contracts
2022 – reg.

Ref: (i) Commission's guidelines on Intensive Examination of Procurement &
Other Contracts 2014.
(ii) CVC Circular No. 05/05/21 dated 06.05.2021

Central Vigilance Commission has revised the guidelines relating to the Intensive Examination of Public Procurement Contracts being carried out by Chief Technical Examiner's Organisation of the Commission. The revised guidelines are enclosed.

2. The time limit and the procedure as prescribed in the guidelines may be brought to the notice of the authorities concerned by the Chief Vigilance Officers of the respective organisations for strict compliance.

(Rajiv Verma)
Director

Encl.: As above.

To

- (i) The Secretaries of all Ministries/Departments of GoI
- (ii) All Chief Executives of CPSUs/Public Sector Banks/Public Sector Insurance Companies/ Public Sector Financial Institutes/ Autonomous Bodies etc.
- (iii) All CVOs of Ministries/Departments of GoI/CPSUs/Public Sector Banks/Public Sector Insurance Companies/Public Sector Financial Institutes/Autonomous Bodies etc.
- (iv) Website of CVC.



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GUIDELINES
ON
INTENSIVE EXAMINATION
OF
PUBLIC PROCUREMENT CONTRACTS
2022

CHIEF TECHNICAL EXAMINER'S ORGANISATION
CENTRAL VIGILANCE COMMISSION

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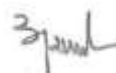
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CHAPTER 1

ORGANISATION

1.1 Introduction

The Central Vigilance Commission was set up by the Government of India through a Resolution in the year 1964, as an apex body for prevention of corruption in Central Government institutions and public administration. The establishment of the Commission was considered essential for evolving and applying common standards in deciding cases involving lack of probity and integrity in administration. The Resolution empowered CVC to undertake enquiry into any transaction in which a public servant is suspected or alleged to have acted for an improper purpose or in a corrupt manner irrespective of his or her status.

A debate in the Parliament on the issue of corruption in administration led to setting up of a Committee by Shri Lal Bahadur Shastri, the then Hon'ble Minister for Home Affairs under the Chairmanship of Sh. K. Santhanam, MP, to review the existing instruments for checking corruption in the Central Services and to advise practical steps to make anti-corruption measures more effective.

The Santhanam Committee while appreciating the good work done by the Chief Technical Examiner Organisation (CTEO) recommended that the CTEO should not only be continued but strengthened so as to make it more effective. The Committee was also of the view that the jurisdiction of CTEO should not only be extended to cover construction works undertaken by other Ministries/Departments also and it should be placed under the administrative control of the Central Vigilance Commission. The recommendations were



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accepted by the Government and thus CTEO was placed under the administrative control of the Central Vigilance Commission.

Later, in year 1997, Hon'ble Supreme Court of India in Criminal Writ Petition Nos. 340-343/1993 (Vineet Narayan Vs. Union of India) popularly known as 'Jain Hawala Case' gave directions that a Statutory status should be conferred upon the Central Vigilance Commission. Accordingly, in year 2003, CVC Act, 2003 was notified with the approval of the Indian Parliament. This act provides Central Vigilance Commission as a multi-member body comprising of the Central Vigilance Commissioner (Chairperson) and not more than two Vigilance Commissioners (Members). CVC has been conferred upon the power to exercise superintendence over the functioning of Delhi Special Police Establishment in so far as investigations under the Prevention of Corruption Act, 1988 are concerned and to review the progress of the investigations.

1.2 Organisational Set Up of the Commission

Presently, Commission comprises of the Central Vigilance Commissioner and two Vigilance Commissioners. The Commission is assisted by a Secretariat headed by 'Secretary to the Commission' for facilitating the Commission in discharge of their functions. The Chief Technical Examiner's organization (CTEO) of the Commission advises the Commission in Technical Matters besides conducting Intensive Examination of procurement contracts of various organizations covered under the jurisdiction of the Commission.

1.3 Chief Technical Examiner's Organization

Chief Technical Examiner's Organization (CTEO) is the technical wing of the Commission. Initially on the recommendation of Public Accounts Committee,



Chief Technical Examiner's Organisation was created in the Ministry of Works, Housing & Supply (now known as Ministry of Urban Development) in May, 1957. Later on, after the recommendations of the Santhanam Committee were accepted by the Government, this organization was placed under the administrative control of Central Vigilance Commission in the year 1964. Initially this organization was headed by one Chief Technical Examiner. In the year 1979 one more post of Chief Technical Examiner was created to cater to the increasing workload and growing complexity of the Public Procurements. Chapter IX of the Vigilance Manual (updated) 2021 issued by the Commission lays down the modalities of carrying out Intensive Examinations by CTEO. As per the Manual, Jurisdiction of CTE's Organisation is coterminous with that of the Commission.

1.4 Organizational Set Up of Chief Technical Examiner's Organization

Out of the two Chief Technical Examiners, one is generally responsible for examination of Contracts for Civil Works and Horticulture works and the other for Procurement Contracts, i.e. for Store Purchases, Electrical/ Electronics/ Mechanical works, Hiring of services etc.

The present set up is as under:

❖ Chief Technical Examiner (Civil Works)

- Technical Examiner (NH)
- Technical Examiner (SH)
- Technical Examiner (WT)
- Technical Examiner (ET)



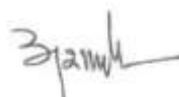
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❖ **Chief Technical Examiner (Electrical/Mechanical/Store Purchases/Services Contracts)**

- Technical Examiner (SP&IC-I)
- Technical Examiner (SP&IC-II)
- Technical Examiner (Elect.) ENE
- Technical Examiner (Elect.) ESW

The Technical Examiners are assisted by Assistant Technical Examiners/Junior Technical Examiners. Technical personnel are drawn from various Government Organizations on deputation/secondment basis.



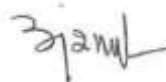
CHAPTER 2

QUARTERLY PROGRESS REPORT

2.1 Quarterly Progress Report

CVC Act 2003 empowers the Commission to call for reports, returns and statements from all Ministries/Departments/Corporate Central Undertakings so as to enable the Commission to exercise general check and supervision over the vigilance and anti-corruption work in the Ministries/Departments/Undertakings. Chief Vigilance Officers of various Organisations covered under the jurisdiction of the Commission are required to furnish Quarterly Progress Reports (QPRs) in respect of ongoing contracts for the quarter by 15th day of the month following the quarter. Even though, CTEs organization may examine Contracts of any magnitude, yet considering limitation of resources, it generally undertakes examination of Contracts of larger value only. The monetary limit for reporting the Procurement Contracts in QPRs are as follows:

Nature of Contract		Value
Category-I		
1.	Civil works	Rs. 5 Crore & above
2.	Turnkey works contract	
3.	Store & Purchase (any type including stationery)	
4.	Public Private Partnership (PPP) (Cost/ Revenue)	
5.	Sale of goods/Scrap/Land etc.	
Category-II		
6.	Electrical/Mechanical/Electronics Instrumentation/Telecommunication/IT works contract	Rs. 1 Crore & above
7.	Medical Equipment	Rs. 50 Lakhs & above
8.	Consultancy Service contract	Rs. 1 Crore & above



9.	Non-consultancy Service Contract (Non-consultancy Services shall be as defined in Manual for Procurement of Consultancy & Other Services issued by D/o Expenditure)	Rs. 1 Crore & above
Category-III		
10.	Horticulture work	Rs. 10 Lakhs & above
11.	Supply of medicine	Four high value contracts

The QPRs of different discipline should be submitted on separate sheets of paper. While submitting the QPR to the CTE Organization, CVOs should keep the following points in view:

- (a) The cost of the work relates to the accepted / tendered / work order value of the work and not the estimated cost.
- (b) If one Ministry/Department/Undertaking of the Central Government has entrusted the work to another Ministry/Department/Undertaking of the Central Government for execution, the work should be reflected in QPRs of both the Organizations.
- (c) The location of the work must be indicated.
- (d) Use of abbreviations that are not known ordinarily should be avoided.
- (e) Civil works also include marine, mining, excavation and transportation works and purchase of 'ready built properties'.
- (f) Electrical/Mechanical works also include air conditioning, firefighting, fire alarm and all other allied works.
- (g) In case, there are no works awarded more than the threshold value mentioned under each sub-category, two contracts with highest value in each of such sub-category should be reported; except in the case of procurement of medicines, where four highest value contracts to be reported. In case no contracts are awarded, "Nil" QPR may be sent.

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- (h) In case the orders are placed in foreign currency, the threshold limit would be determined based on conversion of foreign currency with Indian Rupee at the exchange rate defined in the tender documents. However, the currency of payments may also be indicated as per the contract.
- (i) Contracts awarded on Assignment/Nomination/Single Tender/ Original Equipment Manufacturer (OEM)/ Original Equipment Supplier (OES)/ Proprietary Article Certificate (PAC) basis falling in the above categories shall also be reported.
- (j) For furnishing the QPR related to Sale Contracts i.e. Sale of Goods / Scrap/ Land etc. the QPR may also to indicate the value as per reserve price besides the sale price.
- (k) The organizations shall report all types of contracts irrespective of their role as Chief Owner or Engineer-in-Charge of the Contract or Project Management Supervision Consultant.
- (l) All works whether in India or outside India in progress, contracts awarded, and the works completed during the quarter shall be included in the QPR. In respect of works completed during the relevant quarter, the actual date of completion shall be indicated.
- (m) While submitting the QPR, CVO to certify that all the Works/Purchases/ Consultancy and other contracts required to be reported have been included in the QPR.

The 'format for submission of QPR' is at **Appendix- I**.

2.2 Selection of Contracts for Intensive Examination

CTE's Organisation conducts Intensive Examination of some of the contracts under different categories reported in QPRs. Selection of contracts for Intensive



Examination is generally undertaken from the QPRs received from various Organisations, keeping in view the following factors:

- a) Complaints received from various sources.
- b) Works specifically recommended by CVOs for inspection.
- c) Works of organisations with substantial workload as compared to others.
- d) Large value contracts.
- e) Works of organisations, which do not have their own Engineering Departments for supervision and Quality Control.
- f) Works of organisations, which have not been inspected at all.

Works of different nature, such as Hydro/Thermal/Nuclear Power Projects, Petro-chemical Projects, Renewable Energy Projects, Procurement of IT products and IT based solutions/services, Mining, Highways, Ports, Railways, Buildings, water supply, drainage/sewerage works etc. are given consideration. Works of unusual nature are also given due consideration for the purpose of selection for examination.

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CHAPTER 3

INTENSIVE EXAMINATION

3.1 Purpose of Intensive Examination

The purpose of Intensive examination can be categorized as given below:

- i) System Improvements based on lessons learnt from the examined contracts.
- ii) Detection/Recoveries of over-payments.
- iii) Tax compliance and follow up action.
- iv) Quality deficiencies and the remedial action; and
- v) Penal action in cases involving gross inaction/oversight and cases involving vigilance angle.

3.2 Requisition of Records

After approval of the Commission for Intensive Examination of procurement contracts, intimation will be sent to the respective CVOs requesting for certified copies of the contract agreement, last bill paid to the contractor along with other details as per standard Proforma (**Appendix-II**). A list of records/documents to be kept ready for examination during intensive examination is also enclosed in the above proforma.

3.3 Intensive Examination of Contracts based on records requisitioned in the Commission

If, Commission decides that Examination of the particular Contracts be carried out without visiting the office of the Organisation concerned or work- site/stores, all original documents may be requisitioned in the Commission and after going



through the documents, specific queries are sent to the Organisation through CVO for reply/clarification. These replies should be forwarded by CVO to the Commission along with his/her comments.

3.4 Intensive Examination of Contracts based on records, field/site visit

Intensive Examination of Procurement Contracts is generally conducted in two parts: -

- (a) The first part covers the examination of the records and documents at Headquarters or the concerned office/unit of the Organisations. Issues, arising out of examination of the records at this stage, can be discussed with the officials concerned for clarity.
- (b) The second part covers the physical inspection of the works / materials/ services including checking of measurements and quality of materials, works and services, collection of samples of materials for testing, wherever possible/required, etc.

The intensive examinations are mostly undertaken with prior intimation so that the officials concerned may be present at site and well prepared to offer clarification on issues arising during intensive examination. However, in specific cases, surprise inspections can also be carried out. In cases of planned inspections, officials concerned from the departments pertaining to Planning, Design, Tender Processing, Acceptance of Tenders and Contract Management are required to be present. The representatives of the contractor/supplier/service provider, if required and the consultant may also be present to clarify any issue arising out of their activities. The presence of CVO or his/her representative is essential to act as a nodal officer. While collecting samples, officials concerned,

representatives of the contractor, project management consultant, if any and CVO or his/her representative shall be associated and are required to sign the proforma containing details, such as nature of material, location of sample collection, date and time of collection etc. as token of their witness to the same. Standard Proforma in this regard is at **Appendix-III**. Sample(s) collected shall be handed over to the representative of CVO for further sending the same to the laboratory, except for some special cases, where samples can be handed over to a responsible person of the Organisation due to unavoidable absence of the CVO or his/her representative. In some cases, samples can be sent directly by CTEs' Organisation to the laboratory for testing. Standard format for letter to be addressed to the Test House is at **Appendix-IV**.

3.5 Memo for seeking clarification/requisitioning additional records

During Intensive Examination, Technical Examiner may issue Memo to the nodal officer for seeking clarification from the officials concerned on certain issues. The clarifications furnished should be duly signed by the officials concerned and may be considered while preparing the Intensive Examination Report. Memos can also be issued for requisitioning specific/additional records for examination. All possible efforts must be made by the officials concerned for furnishing clarification/records during intensive examination itself to avoid infructuous effort in raising these issues in the Intensive Examination Report. Such Memos may also form part of the draft Intensive Examination Report to be submitted to CTE concerned by the Technical Examiner.

3.6 Sample Collection

- (i) Samples collected during Intensive Examination will be handed over to the CVO of the Organisation concerned or his / her representative for further

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sending it to the laboratory for testing. A letter addressed to the laboratory (National Test House, IITs or other reputed NABL accredited laboratories), having details of samples collected, tests to be conducted, codes to be referred, etc. along with the impression of Commission's seal used for sealing the samples shall be issued by the Technical Examiner with a copy to the CVO of the organization concerned.

(ii) CVO of the Organisation concerned will ensure timely submission of the above said samples to the laboratory for testing and also expeditious payment to the Laboratory towards testing charges.

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CHAPTER 4

INTENSIVE EXAMINATION REPORT

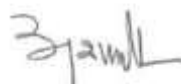
After completion of the Intensive Examination exercise, an Intensive Examination Report containing various details and the observations shall be prepared.

4.1 Preparation and processing of Intensive Examination Report

- (i) Within one month of the completion of the Intensive Examination exercise, a draft report containing various observations/para will be prepared as per **Appendix V** by the Technical Examiner and shall be put up to the CTE for approval.
- (ii) After approval of the Intensive Examination Report by the CTE, a synopsis will be prepared. Synopsis along with Intensive Examination Report shall be put up to the Commission through Secretary, CVC for perusal.
- (iii) Based on the gravity/complexity of the issues brought out in the Intensive Examination Report, CTE may propose for a presentation on observations in the Intensive Examination Report before the Commission. However, Commission may also order for a presentation by the CTE.
- (iv) During the presentation, Commission may order for another presentation to be made by the CVO after submission of the Action Taken Report.



- (v) Based on the examination of the Action Taken Report submitted by the CVO, CTEO may also propose for a presentation by the CVO before the Commission.
- (vi) Comments of the Secretary and/or Commission made during presentation or on perusal of the synopsis shall be incorporated in the Intensive Examination Report and thereafter final Intensive Examination Report shall be issued and forwarded to the CVO of the Organization by the Technical Examiner, with the approval of CTE.
- (vii) Where Intensive Examination is conducted on the orders of the Commission, based on the complaint or otherwise, the Intensive Examination Report along with the synopsis shall be put up to the Commission through Secretary for perusal and orders.
- (viii) The Intensive Examination Report shall be sent by the Technical Examiner through post as well as through email from his/her post-based e-mail Id to the post-based email Id of the CVO as well as the Head of the Organisation.
- (ix) CVOs shall be required to submit the Action Taken Report in respect of observations in the Intensive Examination Report to the CTEO within two months from the date of issue of the Report. CVO shall be required to send his/her categorical and comprehensive recommendations on each observation/para so as to avoid repeated correspondence on the observations.
- (x) On examination of the action taken report/clarification from the CVO, para/ observation(s) with prima facie vigilance angle shall be converted into vigilance para. CTE will put up proposal for converting the para/observation(s) in



the Intensive Examination Report into a Vigilance Para for Commission's approval through Secretary, CVC. In some cases, where lapses/irregularities are of serious nature and prima-facie have vigilance angle, such para/observation(s) can also be converted into Vigilance Para, at the time of finalization of the Intensive Examination Report itself. On receipt of the approval of the Commission for converting the observation into Vigilance observation/para, the case will be sent to the Vigilance Branch in the Commission for making a reference to the CVO. For this purpose, a separate file will be opened in the Vigilance Branch. Copy of the vigilance reference sent by the Branch Officer to the CVO shall also be endorsed to CTEO for record.

(xi) Para/observation(s) contained in the vigilance reference shall be required to be investigated by the CVO of the Organization and Investigation Report shall be submitted to the Secretary, CVC within three months of the receipt of the reference from the Commission in this regard. Comments of CTEO will be taken by the Branch Officer through Additional Secretary while dealing with the Investigation Report received from the CVO. Copy of OM conveying First Stage Advice of the Commission shall also be endorsed to CTEO by the Branch Officer for record of the CTEO.

4.2 Aspects to be covered in the Intensive Examination Report

Intensive Examination Report broadly covers the following aspects of the Procurement-

(i) Availability of Procurement Manual(s) of the Organisation updated in line with the Manuals for Procurement of Goods, Works and Consultancy & Other Services (of June 2022 or as updated) as well as General Financial Rules 2017 (or



updated version) issued by Department of Expenditure, M/o Finance, Govt. of India

- (ii) Feasibility Report, Preliminary Estimate, Administrative Approval and Expenditure Sanction, Vetting of Demands etc.
- (iii) Detailed project Report, Detailed Estimate, Analysis of Rates and Technical Sanction by the Competent Authority
- (iv) Appointment of consultant and operation of Consultancy Contract.
- (v) Tender document and adequacy of provisions therein as well as technical specifications.
- (vi) Pre-bid meeting and clarifications on the issue raised by bidders
- (vii) Invitation of tenders and award of work
- (viii) In case of e-tenders/ e-procurement, all the records, including Audit Trail
- (ix) Compliance of Contract Conditions
- (x) Appropriateness/Adequacy/Genuineness of Performance Bank Guarantee or any other type of Guarantees or any other Financial Instrument to be submitted by the Contractor/Supplier/ Service Providers
- (xi) Appropriateness/Adequacy/Genuineness of the Insurance Policies
- (xii) Enforcement of liabilities of contractors/suppliers/manufacturers within 'Warranty/ Guarantee/Defect Liability Period
- (xiii) Reconciliation of departmentally issued materials
- (xiv) Compliances of provisions related to various type of taxes

- (xv) Inspection, dispatch and acceptance of materials or works
- (xvi) Compliance of conditions in the Service
- (xvii) Scrutiny of bills
- (xviii) Scrutiny of site records
- (xix) Compliance of Statutory obligations
- (xx) Site Inspection
- (xxi) Any other issue felt necessary to be examined

The Intensive Examination Report brings out instances of lapses/ irregularities in awarding contracts, defective contract conditions, non-compliance of contract conditions over-payments made to contractors, execution of sub-standard work or not matching with the specifications, 'time & cost overrun', infructuous and avoidable expenditure etc.

4.3 Intensive Examination Report not to be used as document for evidence

It has been clarified by the Commission that Intensive Examination Report should not be made document for evidence in departmental enquiry or evidence in the court of law. Since, the allegation in a charge sheet is based on the conclusion drawn by CBI or any investigating agency or competent authority after perusing documents/ evidence independently, Intensive Examination Report cannot by itself be considered to be a factor which determines the final decision.

4.4 Action Taken Report/Reply to Intensive Examination Report

After receipt of the Intensive Examination report, the CVO should forward the Intensive Examination Report to the management/officials concerned in the Organisation for comments. The comments should include the followings-



- a) A statement regarding correctness of facts stated in the Intensive Examination Report. If, some of the facts are not correct, this should be clearly brought out and at the same time the correct facts, if different from the facts mentioned in the Intensive Examination Report, should also be indicated.
- b) A detailed reply for the acts of commission or omission brought out in the report.
- c) Comments on the explanations received from concerned officers.

Replies to the observations in the Intensive Examination Report should be sent promptly within two months from the date of despatch of report. Documentary evidence in support of reply should also be enclosed with reply. A sample proforma for sending reply is enclosed as **Appendix VI**.

The Chief Vigilance Officers should arrange to have similar and complete examinations done in other cases at his/her end. He/she should thereafter act upon the findings of such examination and, wherever necessary, may consult CTE Organization.

Arrangements should be made to get the defects pointed out in CTE's report rectified either by the contractor or otherwise keeping in view the contract conditions.

Minor irregularities brought out in the report should be got regularized by the competent authority after ascertaining the reasons and taking remedial measures. Appropriate preventive measures may be taken for future and the defaulters suitably warned so that such irregularities do not reoccur. In cases involving serious inaction / oversight / mala-fide; penal action may also be proposed by the CVO in consultation with the Disciplinary Authority, besides correction of the deficiency.

The Chief Vigilance Officers should ensure to have recoveries effected in terms of contract clauses in cases where over payments are pointed out in Intensive Examination Report and recovery statements should be submitted to the CTEO, supported by analysis of rates based on which recoveries have been effected. Such recoveries need not be postponed till the payment of final bill. In case, there is any difficulty in making recovery of the full amount, recovery of agreed amount should, at least be ensured from the next bill.

In cases, where the contractor has gone for arbitration to contest recoveries, CVO should ensure that such recoveries are implemented immediately unless there are orders from a Competent Court restraining recoveries.

In cases, where the work is treated as substandard in Intensive Examination Report, the sanction of competent technical authority for accepting such substandard work may be obtained and the rate of payment suitably reduced. Before sanctioning such reduced rate statements, the structural soundness and functional adequacy of substandard work should be established.

In cases where the consultants or contractors or suppliers have put the Organisation or the department to a loss or have done grossly substandard work for which they have claimed full payment, the CTE will point out the need to take action against such an agency. The CVO should take further steps with the concerned authorities in the organisation and keep the CTE informed about the action taken.

4.5 Rejoinder to the Action Taken Report/ Reply

In cases, where the replies to the observations are not considered satisfactory by the CTE's Organization, clarifications from them may be called through rejoinders. The proforma for reply to the rejoinders is given in **Appendix VII**.

Taking into account the replies/clarifications furnished, decision regarding referring serious para for detailed investigation by the CVO may be taken with the approval of the Commission. Such para would be referred to the CVO by the concerned vigilance branch for conducting detailed vigilance investigation.

4.6 Final Action on the Intensive Examination Report

Each non- vigilance observation/para will be concluded/closed with the approval of CTE.

Overall time limit for conclusion of the Intensive Examination case shall be seven months from date of issue of Intensive Examination Report. However, where it is not possible to conclude the Intensive Examination case within seven months, additional time up to one month may be availed, beyond which, special permission for relaxation shall be sought from Secretary, CVC.

The Intensive Examination case files having vigilance para/reference(s) shall be converted into NTD (Not To be Destroyed) category by the Technical Examiner on closure of the non-vigilance para and on receipt of the copy of vigilance reference issued by the Branch Officer to the CVO. Approval of the Secretary, CVC shall be obtained before converting the case file into NTD category. After issue of the OM conveying First Stage Advice of the Commission, the NTD file shall be removed from NTD category and shall be retained for five years in the record room under T5 category.

In Intensive Examination cases, where there is no vigilance para, the case file will be closed under T3 category and shall be retained for three years in the record room with the approval of the Secretary, CVC.

CHAPTER 5

VIGILANCE INVESTIGATION ARISING OUT OF INTENSIVE EXAMINATION

All issues raised in the Intensive Examination Report do not automatically become vigilance cases.

5.1 On examination of the action taken report/clarification from the CVO, para/ observation(s) with prima facie vigilance angle shall be converted into vigilance para. For the para having prima facie vigilance angle, Technical Examiner will put up proposal to CTE for converting these paras into a Vigilance Para. CTE will put up proposal for converting the para/observation(s) in the Intensive Examination Report into a Vigilance Para for Commission's approval through Secretary, CVC. In some cases, where lapses/irregularities are of serious nature and prima-facie have vigilance angle, such para/observation(s) can also be converted into Vigilance Para, at the time of finalization of the Intensive Examination Report itself. On receipt of the approval of the Commission for converting the observation into Vigilance observation/para, the case will be sent to the Vigilance Branch in the Commission for making a reference to the CVO. For this purpose, a separate file will be opened in the Vigilance Branch. Copy of the vigilance reference sent by the Branch Officer to the CVO shall also be endorsed to CTEO for record.

5.2 Para/observation(s) contained in the vigilance reference shall be required to be investigated by the CVO of the Organization and Investigation Report shall be



submitted to the Secretary, CVC within three months of the receipt of the vigilance reference from the Commission, treating the same as complaint in terms of **para 3.4.2 of Vigilance Manual (Updated 2021)**. Standard format for vigilance reference to be made to CVO shall be as per **Appendix VIII**.

5.3 The following steps are to be taken by the CVO in this regard-

- a) Appoint a reliable and independent Engineer to assist the CVO.
- b) Identify and seize the relevant records.
- c) Scrutinize the records and prepare notes.
- d) Identify the officials responsible for the lapse.
- e) Call for explanations from the officials identified.
- f) Prepare the investigation report (IR).
- g) Submit the Investigation Report to Secretary, CVC.

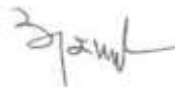
5.4 Investigation Report should be prepared by the CVO as per the procedure laid down in Commission's Circular No. 21/8/09 dated 06.08.2009, 31/12/08 dated 01.12.2008 and O.M.No.3(v)/99/12 dated 14.08.2000. Minimum particulars required under various head of the Investigation Report are explained below –

i) Source:

In this case, the source will be the reference from the Commission for conducting investigation into the matter. Reference to the O.M. of the Commission under which investigation is to be carried out should be made.

ii) Appointment of Independent Engineer:

Whenever the CVO has no competent engineer under him, he has to appoint an independent engineer to assist him during investigation.



Many CVOs get the investigation conducted by the independent engineer and forward the same to the Secretary, CVC for advice without the comments of CVO. It is not proper. The independent engineer is to assist the CVO in conducting the investigation and prepare the report. These are to be discussed under this head.

iii) Gist of Allegations:

Original paras and the lapses highlighted in the references are to be mentioned here.

iv) Facts:

- The relevant facts relating to the issue under examination should be presented in chronological or activity-wise sequence.
- Each fact should be supported by documentary evidence (other forms of evidence may also be presented) denoted as E1, E2 and E3 etc. Since, the facts occur in chronological order, the evidence E1, E2, E3, etc. should necessarily be arranged under the report in the same order, thus making it easier for reference.
- While annexing the evidence, the relevant portion of the document should be highlighted and annexed. For example, the evidence of technical/financial credentials for meeting the qualifying requirement should consist of the Xerox copy of the relevant clause prescribing the qualifying requirement and not the copy of the complete tender document.
- There may be several issues in a report which may be conveniently arranged as different paras viz. 2.1, 2.2, etc.

- All relevant facts needed to support the observations/conclusion should be gathered and presented. Irrelevant facts, bearing no consequence on the issues under inquiry should be avoided.
- Evidence presented should be credible and adequate.

v) **Observations:**

- Ordinarily, observations are logical deductions arrived at through a set of facts. They are in the nature of objections or anomalies observed with reference to the gathered facts. There may be several observations arising out of the analysis of facts.
- Observations are also arrived at by evaluating the facts against certain criteria viz. rules, regulations, policies, procedures, norms, good practices or normative principles. Evidence of these criteria (extracts of rules, procedures, etc.) should also be presented as E1, E2, etc.

vi) **Defence/ Response of the officials concerned:**

- It is necessary to elicit the reasons and clarifications of the Management, or the officers concerned for the anomalies pointed out in the observations. Every deviation from rules or procedure cannot be attributed to a mala-fide/corrupt intent. There could be situations, where sometimes decisions taken are not in full conformity with the laid down rules and procedures in the larger interest of the work and with good intentions; as such, it may be appropriate for the Vigilance to look deeper into the context in which such decisions were taken. Therefore, obtaining the response of the officers concerned is essential in order to arrive at an objective conclusion.
- Response of the management is also necessary in order to clarify differences in interpretation or an understanding of the issues between vigilance and the management.

vii) Counter to the Defence/ Response:

In order to sustain the observations made by Vigilance, it is necessary to counter the defence given by the management/officers concerned with facts and supporting evidence. It should be clearly and convincingly brought out why the explanation given by the management is not tenable.

viii) Conclusion:

- Conclusion is the logical summation of the observations. The observations, denoting various counts of irregularity, lapses or impropriety, should finally lead to a logical conclusion on whether the case involves commission of irregularity with the mala-fide intention or otherwise.
- Undue favour given to a party or obtained for self and its adverse impact on the government or the citizens in terms of additional cost, poor quality or delayed service should be clearly highlighted.

ix) Responsibility of officials:

- Having determined the vigilance angle in the case, the next step is to fix the accountability of the individuals involved in the misconduct. Name of officers should be clearly stated in this para.
- The role of each officer should be judged with reference to his prescribed charter of duties. In case the tender Committee is responsible for the misconduct then, as far as possible, all members should be equally and collectively held responsible.
- Comments of Disciplinary Authority should invariably be included.

x) Recommendation for action:

- Recommendation for closure should only be in cases where there is no discernible vigilance angle. However, in cases, where criminal misconduct

is detected, appropriate recommendation should be made by the CVO. Recommendation of the CVO should be clear and unambiguous.

- Biodata of the officials, reported against in the investigation report, should be included in the given format.

xi) Recommendation for systemic improvement:

Punitive action on detection of irregularities/ lapses does not by itself lead to a logical conclusion, unless suitable measures capable of preventing recurrence of the irregularities/ lapses are also suggested / implemented. Any fraud, corruption, irregularity or impropriety indicates a failure of control mechanism or gaps in systems and procedures. Therefore, each case throws up an opportunity to identify these control failures and suggest ways of plugging them to prevent recurrence of the lapse. Therefore, at the end of the report, the CVO should also try to recommend systemic improvements in order to prevent the risk of a recurrence of the lapse/misconduct.

xii) Tabular statement:

With a view to streamline the procedure and to avoid delay on account of incomplete information, it has decided that, along with other records/documents, the following tabular statement should accompany the organisation's recommendations: -

S. No.	Name & Designation of the suspected	Allegations in brief	Findings of the investigation/inquiry on each allegation	Defence of the suspected officer	Comments/Recommendation of the DA	Comments/Recommendation of the CVO
--------	-------------------------------------	----------------------	--	----------------------------------	-----------------------------------	------------------------------------

	officer		n			

xiii) ASSURANCE MEMO

This is to provide reasonable assurance to the Commission and content of it should be as per **Appendix-IX**.

xiv) Biodata of the officials:

Complete Biodata of the officials against whom Commission's advice is sought should be furnished as per **Appendix-X**.

5.5 Commission's Advice

After investigation, the IR should be sent to the Secretary, CVC by the CVO for first stage advice. Even if the CVO comes to the conclusion that no vigilance angle is involved, the matter has to be referred to the Commission for advice as the complaint has emanated from the Commission. The comments of CTEO on Investigation Report would be obtained by the Branch Officer through Additional Secretary. Branch Officer will put up the case, duly incorporating the comments of CTEO, for consideration and advice of the Commission. Copy of OM conveying First Stage Advice of the Commission shall also be endorsed to CTEO by the Branch Officer for record of the CTEO.

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CHAPTER 6

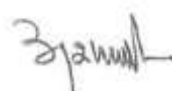
ROLE OF CVO IN INTENSIVE EXAMINATIONS

CVO of the Organisation plays a vital role in Intensive Examination process. With the limited staff available, CTEO can only undertake intensive examination of few of the contracts of organizations covered under the jurisdiction of CVC. Therefore, it was felt necessary by the Commission that the CVOs should also undertake similar intensive examination of procurement contracts in their respective Organisations. Other important functions of CVO in respect of the Intensive Examination are listed below for timely action to enable the organization to effect immediate recovery from the contractors/suppliers as well as to ensure accountability of officials responsible for the lapses.

- a) Timely submission of:
 - i) QPR
 - ii) Documents required for intensive examination.
 - iii) Preliminary Examination of the impugned Contract and submission of report to CTEO before Intensive Examination is carried out by Technical Examiner and
 - iv) Replies to Intensive Examination Reports/rejoinders.
 - v) Investigation Report with the assistance of an independent engineer.
- b) Ensuring:
 - i) Presence of Engineers responsible for planning, design, tender scrutiny, award of work and construction during inspection.
 - ii) Presence of representatives of CVO during inspection.
 - iii) Rectification of Defects in the Project/Supplies.



- iv) Recoveries from the Contractors for the over-payments.
- v) Implementation of necessary directions issued by the Commission/CTEO.
- c) Carrying out periodical inspection of works with the assistance of the technical staff of CVO in line with CTE's inspection.
- d) Pursuing, preparation and issue of Procurement Manual.
- e) Implementation of guidelines/circulars issued by the Commission/CTEO.



CHAPTER 7

TIME SCHEDULE

Timely action on the observations raised in the intensive examination report is important, as in some cases, delay may render the action(s) to be taken as time barred. Sometimes, Vigilance Investigation Reports are also delayed considerably, which may allow officials responsible to retire without any action. Last minute references to the Commission for advice just before retirement of the concerned officials should also be avoided.

Following time schedule shall be adhered by all concerned-

S. No.	Activity	Schedule
1.	Issue of Intensive Examination Report by CTEO including submission of synopsis/ presentation before the Commission	Two Months from the date of inspection.
2.	Action Taken Report/ Reply by the CVO to the observations in the Intensive Examination Report	Within Two Months from the date of issue of I/E report
3.	Rejoinder to CVO's reply	One Month from the date of reply
4.	Final Action Taken Report/ Reply to CTEO's rejoinder by CVO	One Month from the date of issue of rejoinder
5.	Final examination/scrutiny by CTEO	Within One Month from the date of receipt of Final Action Taken Report/ Reply from the CVO
6.	Submission of Investigation Report in respect of Vigilance Para/Observation(s) by CVO	Three Months from the date of vigilance reference from the Commission

Appendix-I

Statement showing the Quarterly Progress of Original Works for Quarters ending
March/June/September/December

S. No.	Name of work and location	Estimated Cost	Tendered cost	% above / below SOR	Agmt. No.	Agency	Date of start	Time of Comp.	Physical Progress	Name of E-in-C with address	Remarks
1											
2											

Note: CVO is required to certify that all the works purchase/consultancies and other contracts required to be reported have been included in the QPR.

sh

for

3/2/2011

No.
Government of India
Central Vigilance Commission
(CTE's Organisation)

Satarkata Bhawan,
Block 'A', GPO Complex,
INA, New Delhi-110023.

To

Sub: Intensive Examination of Procurement of Works/Goods/Services.

Ref:

Sir,

1. It has been decided to carry out Intensive Examination of the following works/goods/services of your Division/Organisation

S.No.	Name of work/good/services contract	location	Agreement No	Name of contractor/agency

2. To enable the inspection to be carried out properly, you are requested to please arrange to collect and make the following documents available to the undersigned/Asstt. Technical Examiner/Jr. Technical Examiner as explained below.

2.1 PROFORMA FOR GENERAL INFORMATION IN ANNEXURE-I: Item under paras 1 to 1.3 may be filled in and the proforma returned immediately duly signed. In case the administrative set up is different from that indicated in paras 1.2 and 1.3, the information may be furnished as per the set up available in your organization.

2.2 PROFORMA 'TECHNICAL INFORMATION' FOR IN ANNEXURE-II: This may please be filled in, signed, and forwarded immediately.

2.3 DOCUMENTS FOR INSPECTION AT SITE OFFICE ANNEXURE-III: All these original documents will be examined at site/ office/ godown and may please be kept ready during inspection. However, copy of following documents (Hard copy as well as soft copy) may please be send immediately.

- (i) Copy of last R/A bill (duly paid) with its enclosures.
- (ii) Copy of agreement with complete specifications of work.



- (iii) Copy of extra/substituted/reduction items (approved/proposed) with corresponding analysis of rates of each item.
- (iv) Copy of tender scrutiny / processing note.
- (v) Copy of Administrative approval, technical sanction and detailed estimate i/c all concerned details.

3. After intimation of inspection program, arrangements may please be kept at site for the inspection of different work along with required tools, plants, and workmen. You may kindly ensure that all parts of the building/work are made available for inspection.

4. The information in proforma at Annexure I and II is to be furnished on factual basis as per records already available. As such it may please be ensured that the requisite information in these proforma including documents mentioned in Para 2.3(i) to (v) above is forwarded immediately. If one or two items are not readily available, submission of the entire proforma should not be delayed on that account. The remaining information may follow shortly thereafter.

5. The tour program for Intensive Examination shall be intimated separately.

6. Kindly acknowledge receipt of this communication.

Yours Sincerely,

()
TECHNICAL EXAMINER

Enclosures: 1. Annexure I, II, III.
2. Proforma A, B, C, D

sk  3/2/2011

Annexure-I

	Particulars of Work	
1.1	Name of the work:	
	Agreement No	
	Name of Contractor	
	Estimated Cost	
	Tendered Cost	
	Due date of Start	
	Due Date of Completion	
	Present Progress	
1.2	Departmental Authorities	
	Zone	
	Circle	
	Division	
1.3	Officials In charge of Work	
	Chief Engineer / ED	
	Superintending Engineer / GM	
	Executive Engineer / DGM	
	Asst. Engineer	
	Jr. Engineer	
	Divisional Accountant	
	Complete Postal Address	
	Office Telephone No.	
	Fax No.	
	Office Mobile No.	
	E-MAIL ID	

[Handwritten signatures and marks]

Annexure-II

2.0	Chronology of Events		
2.1	Sanction and Estimation	:	
	Ref. & Date of Administrative Approval	:	
	Ref. & Date of Estimate Sanction	:	
	(A) Ref.& Date of Technical Sanction (T.S.)	:	
	(B)Basis of Preparation of Estimate for T.S.	:	
2.2	Tender Process	:	
	Date of Approval of PQ Criteria	:	
	Mode of Tender	:	
	(A) Open/Limited/Nomination	:	
	(B) Domestic/ICB	:	
	Type of Tender	:	
	One Stage/Two Stage	:	
	Details about First Stage of Tender	:	
	Purpose	:	
	Date of Advertisement	:	
	Date of Issue of RFP	:	
	Date of Receipt of Proposals	:	
	Total No. of Proposals	:	
	Number of Proposals Accepted	:	
	Name of Accepted Proposals	:	
	Mode of Tender	:	
	One Envelop/ Two Envelops/ Three Envelops	:	
	C) Details of Bids/Documents in These Envelops	:	
	Envelop:1	:	
	Envelop:2	:	
	Envelop:3	:	
	Date of Approval of NIT by Competent Authority	:	
	Date of Issue of NIT In Press	:	
	(A) Date of Appearance of NIT on Website	:	
	Last Date of Sale of Bids	:	
	Dates of Pre-Bid Meetings	:	
	Corrigendum to NIT, If any	:	
	Date of Receipt of Bids & Extensions	:	

de

de

3/2/2014

		Date & Time of Opening of Different Bids Envelop:1 Envelop:2 Envelop:3	:	
		No. of Tenders Sold/ Downloaded	:	
		Total No. of Tenders Received	:	
		Name of Bidders Who Submitted Bids	:	
		Dates of Tender Evaluation Committee (TEC) Meetings	:	
		Name & Designation of TEC Members	:	
		Tender Approving Authority & Date of Final Approval	:	
		Whether Work Awarded to Lowest Tenderer	:	
		Quoted Amount of Lowest Bidder	:	
		Whether Negotiations Conducted (Yes/No)	:	
		Accepted Amount of Lowest Bidder	:	
		Works Manual adopted	:	
	2.3	Post Contract	:	
		Event	:	
		Deviation Item No.	:	
		Extra Item No.	:	
		Substituted Item No.	:	
		Last Running Account Bill Paid	:	
		Shifting of Milestone	:	

ad

for -

3/2/2011

DOCUMENTS FOR INSPECTION AT SITE OFFICE

- 1 (A) Press cutting including extended dates, if any.
 - i) For Pre-qualification of Architects / Consultants.
 - ii) For pre-qualification of Contractors.
 - iii) Call of Tenders.
- (B) Register of sale and opening of tenders.
- (C) Audit trail/Log of e-procurement
2. Preliminary estimate, administrative approval, and expenditure sanction i/c processing notes.
3. DPR, Detailed estimate and its Technical Sanction by competent technical authority.
4. Approved NIT (Notice inviting Tenders) in original i/c NIT processing note.
5. Rejected tenders, comparative statements, tender processing / scrutiny notes and acceptance of tender from competent authority for: -
 - (a) Selection of Architects / Consultants.
 - (b) Short-listing or prequalification of bidders.
 - (c) Tender for Main and other works.
6. Justification statement i/c analysis of rates and corresponding noting in support of reasonability of rates for acceptance of tender.
7. Details of negotiations if any made before acceptance of tenders.
8. Original Contract Agreement.
9. List of Technical staff deployed by the contractor on the work i/c their credentials.
10. Performance Guarantee Bond and other Bank Guarantee etc. towards security deposit, Mobilization advance, Tools plants /Machinery advance etc. including extension of validity.
11. Insurance policies for work materials equipment, men etc. including extension of validity.
12. Guarantee for water proofing, termite treatment etc.
13. Standard schedule of rates and specifications.
14. Proof of EPF and ESI contribution deposited by the contractor for the workers deployed on the work.
15. Drawings-Architectural and Structural.
16. All connected Measurement Book, Level Books, Field Books and Lead Charts.
17. All running Account Bills with all connected statements/ vouchers.
18. Statements showing details of check of measurements by superior officers-copies of order laying down such requirements.
19. Accounts of Materials at Site, such as, cement, steel, bitumen, paints, water proofing compound, anti-termite chemical etc.
20. Site order Books / Test Records / Logbooks.

21. Details of extra / substituted items deviated quantities approved by competent authority / being executed /considered for execution in the work along with analysis of rates.
22. Hindrance Register.
23. Office, correspondence files, and inspection notes, if any, issued by inspecting officers.
24. Complaint records, if any.
25. Any other documents relevant to the works.
26. Details of payments in proforma 'A'.
27. Cement consumption statement in proforma 'B'.
28. Steel consumption statement in proforma 'C'.
29. Statement of test material in proforma 'D'.
30. Copy of approved Design Mix of Concrete/Bituminous works and batch slips.
31. Test register / File maintained at site.
32. Copy of EOT granted along with note for processing EOT case.
33. Detail of Rescheduling / shifting of Milestone if any.
34. Copy of Completion certificate recorded if any.
35. Statement of Cost variation/ Escalation paid to the contractor.
36. Quality assurance reports, audit reports.
37. Detail of reimbursement of Taxes/ royalty etc.
38. Progress reports and photographs/Video.
39. Brief History of the project containing chronological events.
40. EIA report, EMP and Environment clearance from competent authority if any.
41. Purchase vouchers of cement, steel, and other important materials.
42. List of T&P provided by the contractor at site.

Details of Payment

[illegible]

Name

Signature _____

Cement Consumption Statement up to last bill (cumulative)

Last date of measurement	S.N.	Theoretical required in bags/MT			Actually, consumed in bags/MT	Recovered/ received at site	Remarks
		Quantities of items using cement	Coefficient of cement	Quantity of cement			

Name

Signature





Proforma 'C'

Details of Steel Reinforcement consumption up to Last (S No.) Bill Paid

TMT Steel Diameter in mm	8	10	12	16	20	22	25	28	32	36	40	42
Qty issued By Deptt. / Quantity procured by the contractor (MT)												
Qty measured for payment (MT)												
Qty recovered from bill (MT)												
Balance Qty at site (MT)												

Notes:

1. If any other steel reinforcement is used, information may be furnished in same proforma as for TMT steel.
2. If structural steel is used, information may be furnished in similar proforma for various sections instead of various diameters.

Name

Signature

de J.

3/2/2011

[illegible]

Sd/-
CVO

ad

[Signature]

Zgromadzenie

Appendix-III

**Government of India
Central Vigilance Commission
(CTE's Organisation)**

**Satarkata Bhawan,
Block 'A', GPO Complex,
INA, New Delhi-110023**

Name of work :

Agreement No. :

Name of Organization:

Sub: Collection of Samples.

Following samples were collected from site of work on _____ in presence of

Sl.No.	Code No.	Description of Material	Location	Details of tests to be conducted	Ref. Of I.S. Code / Specifications as per contract agreement

The above samples have been sealed with the Commission's seal, the three impressions of which are as under.

1.	2.	3.	4.
Sd/-	Sd/-	Sd/-	Sd/-
Name (Representative of Contractor)	Name (Engineer-in-charge)	Name (Representative of CVO)	Name (TE/CVC)

Received above sealed samples for delivery to Laboratory for testing.

Name and Signature
(Representative of CVO)

46





No.
Government of India
Central Vigilance Commission
(CTE's Organisation)

**Satarkata Bhawan,
 Block 'A', GPO Complex,
 INA, New Delhi-23.**

To,

(Name of Test House)

Sub: Testing of samples of material

Sir,

Enclosed please find herewith _____ packet(s) duly sealed, containing samples as per details given below for performing the tests indicated against each. The test results may kindly be sent confidentially by name to the undersigned indicating the code no. of each sample.

Code No.	Description of Material	Quantity	Details of tests to be conducted	Ref. Of I.S. Code / Specifications as per contract agreement
1	2	3	4	5

2. Bills for testing charges may be sent to the authority and address mentioned below. The testing charges shall be borne by them. Sealed sample(s) of above material(s) has/have been handed over to them for delivery to your Test House for testing.

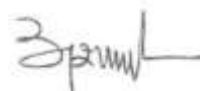
3. The above samples have been sealed with the Commission's seal, the three impressions of which are as under.

--	--	--

Encl: (i) _____ No. of packets of samples.

(.....)
TECHNICAL EXAMINER





INTENSIVE EXAMINATION REPORT
ON
THE WORK "....."
BY
(-----)
TECHNICAL EXAMINER
CHIEF TECHNICAL EXAMINER's ORGANISATION
CENTRAL VIGILANCE COMMISSION

	Period of Inspection	:	
A	Particulars of work	:	
A.1	Name of Work	:	
	Agreement No.	:	
	Name of the Contractor	:	
	Estimated Cost	:	
	Tendered Cost	:	
	Due Date of Start	:	
	Due Date of Completion	:	
	Present Physical Progress %	:	
A.2	Departmental Authorities	:	
	Zone	:	
	Circle	:	
	Division	:	
A.3	Officials In Charge of Work	:	
	Chief Engineer/ED	:	
	Superintending Engineer/GM	:	
	Executive Engineer/DGM	:	
	Asstt. Engineer	:	
	Junior Engineer	:	
	Divisional Accountant	:	
	Others (Specify)	:	
A.4	Details of Office of Chief Vigilance Officer	:	
	Complete Postal Address	:	
	Office Telephone No.	:	
	Fax No.	:	
	Office Mobile No.	:	
	E-Mail ID	:	

A.5	Details of Office of Chief Engineer/Director (Projects)/Project Head of This Work	
	Complete Postal Address	:
	Office Telephone No.	:
	Fax No.	:
	Office Mobile No.	:
	E-Mail ID	:
B	Chronology Of Events	
B.1	Sanction And Estimation	:
	Ref. & Date of A/A	:
	Ref. & Date of E/S	:
	(A) Ref.& Date of Technical Sanction (T.S.)	:
	(B)Basis of Preparation of Estimate for T.S.	:
B.2	Tender Process	:
	Date of Approval of PQ Criteria	:
	Mode of Tender	:
	(A) Open/Limited/Nomination	(a)
	(B) Domestic/ICB	(b)
	Type of Tender	:
	One Stage/Two Stage	:
	Details About First Stage of Tender Purpose	:
	Date of Advertisement	:
	Date of Issue Of RFP	:
	Date of Receipt of Proposals	:
	Total No. of Proposals	:
	Number of Proposals Accepted	:
	Name of Accepted Proposals	:
	Mode of Tender	:
	One Envelop/Two Envelops/ Three Envelops	:
	Details of Bids/Documents in these Envelops	:
	Envelop:1	:
	Envelop:2	:
	Envelop:3	:
	Date of Approval of NIT By Competent Authority	:
	Date of Issue of NIT in Press	:
	Date Of Appearance of NIT On Website	:
	Last Date of Sale of Bids	:
	Dates of Pre-Bid Meetings	:

		Corrigendum to NIT, if any	:	
		Date of Issue	:	
		Date of Receipt of Bids & Extensions	:	
		Date & Time of Opening of Different Bids Envelop:1 Envelop:2 Envelop:3	:	
		No. of Tenders Sold/ Downloaded	:	
		Total No. of Tenders Received	:	
		Name of Bidders Who Submitted Bids	:	
		Dates of Tender Evaluation Committee (TEC) Meetings	:	
		Name & Designation of TEC Members	:	
		Tender Approving Authority & Date of Final Approval	:	
		Quoted Amount of Lowest Bidder	:	
		Whether Negotiations Conducted (Yes/No)	:	
		Accepted Amount of Lowest Bidder	:	
	B.3	POST CONTRACT	:	
		Event	:	Date of Sanction
		Deviation Item No.	:	
		Deviation Item No.	:	
		Extra Item No.	:	
		Extra Item No.	:	
		Substituted Item No.	:	
		Substituted Item No.	:	

C	Factual Details
D	Observations
1.0	
2.0	
3.0	

SAMPLE COLLECTION

S. No.	Code No.	Description of Material	Location	Details of Tests to be conducted	Ref. Of I.S. Code/ Specifications as per contract agreement
1	2	3	4	5	6

E Miscellaneous Remarks (If Any)

F Annexures

(Name)
Technical Examiner

Appendix-VI

First Reply to Paras of Intensive Examination Report

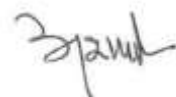
S. No.	Para No.	CTEO's Observation	Reply of Technical Authority		CVO's comments
			Reply	Cost Adjustment proposal	

Sd/-
Name and Designation of
Technical Authority

Sd/-
CVO







Reply to Rejoinders in respect of Intensive Examination Report

Para No.	CTEO's Observation	Reply of Technical Authority	CVO's comments	CTEO's Comments	Reply of Technical Authority		CVO's comments
					Reply	Cost Adjustment proposal	

Sd/-
Name and Designation of
Technical Authority

Sd/-
CVO





Appendix-VIII

No.
Government of India
Central Vigilance Commission

Satarkata Bhawan,
Block 'A', GPO Complex,
INA, New Delhi-110023.

To
The Chief Vigilance Officer,
.....
.....

Sub:

Sir,
Intensive examination of above work was carried out from _____ to _____ by a team of this Commission and a Report was sent to the Chief Vigilance Officer, vide letter No. _____ dated _____. Para as enclosed is being referred to you for a detailed vigilance investigation. It is requested that the detailed investigation report may be submitted directly to the Secretary, Central Vigilance Commission within a period of 3 months.

For the purpose of investigation, you may please refer to the instructions contained in O.M. No.3 (v)/99/12 dt. 14/8/2000. You may get an independent and reliable Engineer appointed to assist you in identifying and seizing the relevant records, preparing scrutiny notes thereon, fixing responsibilities, calling for the explanations of the indicted officials and preparing scrutiny notes on the validity of the explanations received. The report may conclude with your considered comments and recommendations in respect of each lapse referred to you for investigation. All the above notes and explanations may be included in the investigation report. In brief, the lapses are given in Appendix-I enclosed [Appendix to indicate the lapses in brief].

Kindly acknowledge receipt of this reference.

Yours faithfully,

(.....)
Director/Dy. Secretary



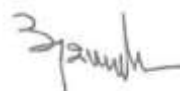
Assurance Memo

This is to provide reasonable assurance to the Commission:

- (a) That all necessary facts and relevant evidence have been gathered.
- (b) That all facts and supporting evidence have been duly verified.
- (c) That contested evidence, if any, have been conclusively handled with reference to the facts at the disposal of Vigilance.

-Sd-

Chief Vigilance Officer



Appendix-X

Format of Biodata of officer(s) against whom Commission's advice is sought

(To be incorporated in the Vigilance Report of the CVO)

1. Name of the officer :
2. Designation
(a) At present :
(b) At the time of alleged misconduct :
3. Service to which belongs :
(Cadre and year of allotment in case of officers of the
organised/All India Services)
4. Date of birth :
5. Date of superannuation :
6. Level/group of the present post and pay scale :
7. Date of suspension [if under suspension] :
8. Disciplinary Rules applicable to the officer :

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